

Court No. - 3

Case :- WRIT - C No. - 3040 of 2022

Petitioner :- Mohammad Nayeem Khan

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Aqeel Ahmad

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, the learned standing counsel for the State-respondents, Sri Udit Chandra, learned counsel for the respondent Nos.2, 3 and 4.

Learned counsel for the petitioner submits that illegally the impugned recovery notice dated 10.12.2021 has been issued by the respondent No.4 for recovery of fake demands. He submits that the petitioner took electricity connection of one kilowatt. There is no allegation of any illegality on the part of the petitioner. As per provisions of Para 4.36 of the U.P. Electricity Supply Code, 2005, in the event a consumer does not pay electricity dues within time allowed under the Bill-cum-disconnection notice, then electricity connection is disconnected temporarily and, thereafter, minimum charges are to be charged in terms of Para 4.37. If the dues are not paid within six months then electricity connection may be permanently disconnected under Para 4.37 read with Para 4.38 of the U.P. Electricity Supply Code, 2005. He further submits that the entire demand has been illegally and baselessly raised against the petitioner.

Sri Udit Chandra, learned counsel for the respondent Nos.2, 3 and 4 prays for and is granted ten days' time to obtain instructions or to file counter affidavit.

Put up as a fresh case before the appropriate bench on 02.03.2022.

Order Date :- 18.2.2022

NLY

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Counsel for Petitioner :- Aqeel Ahmad

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Udit Chandra, learned counsel for the respondent nos. 3 and 4.

This writ petition has been filed praying for the following relief:

"(i) Issue, a writ order or direction in the nature of certiorari to quash the recovery notice dated 10.12.2021 issued by the Respondent No. 4.

(ii) Issue, a writ order or direction in the nature of mandamus directing the Respondent No. 4 to decide the representation dated 24.12.2021."

As per own case of the respondent nos. 3 and 4, as reflected from the electricity bill-cum-disconnection notice dated 19.10.2021 filed as Annexure- 3 to the writ petition, the impugned notice dated 10.12.2021 (Annexure- 5 to the writ petition) and communication for one time settlement (Annexure- 4 to the writ petition); it is evident that the sanctioned load of electricity connection of the petitioner is 1KW and there has not been excess load/demand. For the period from 26.9.2021 to 19.10.2021 i.e. for 24 days, the respondent have shown electricity consumption of 1296 units which, prima facie, appears to be impossible in view of the sanctioned load and absence of excess load/demand. This, prima facie, shows creation of fictitious demands against the petitioner.

The total demand shown in the electricity-cum-disconnection notice is Rs. 70,058/- which, after addition of some other amount has shown as 74,387/- in the notice dated 10.12.2019. Besides above, in our order dated 18.2.2022, we have noted certain facts and the provisions of Paras 4.36, 4.37 and 4.38 of the U.P. Electricity Supply Code, 2005 and directed the respondents to send instructions or to file counter affidavit. More than two months have passed, but the respondents are not yet filed counter affidavit.

Learned counsel for the respondent nos. 3 and 4 merely states

that a fresh decision has been taken by deciding the representation of the petitioner and demand as earlier raised has been affirmed.

In view of the aforesaid, we direct the respondent nos. 2, 3 and 4 to file counter affidavits by means of their personal affidavits within a week, failing which, the respondent no. 3 shall remain personally present before this Court on the next date fixed. In their counter affidavits, the respondents shall also specifically reply to the facts as have been briefly noted above.

Put up as a fresh case before the appropriate Bench on 04.05.2022 at 10:00 AM.

Order Date :- 22.4.2022

A. V. Singh

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Counsel for Petitioner :- Aqeel Ahmad

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Shri Udit Chandra, learned counsel for the respondents states that he has filed his counter affidavit on 29.04.2022, which is not on record.

Office is directed to trace it out and place it on record.

Learned counsel for the petitioner prays for and is granted a week's time to file rejoinder affidavit.

Put up as a fresh case before the appropriate Bench on **12.05.2022.**

Order Date :- 5.5.2022

SK

Court No. - 3

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Petitioner :- Mohammad Nayeem Khan

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Aqeel Ahmad

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Sri Udit Chandra, learned counsel for the respondents states that a counter affidavit on behalf of respondent nos. 3 and 4 have been filed on 29.4.2022 which is not on record.

Office is directed to trace out the counter affidavit and place it on record.

We find that the respondent no. 2 has not filed counter affidavit despite our orders and the alleged counter affidavit dated 2.5.2022 filed by him is not a counter affidavit inasmuch as in the affidavit, he has not replied any of the paragraphs of the writ petition. Therefore, we direct him to file counter affidavit within two weeks subject to payment of cost of Rs. 1000/ which shall be deposited before the High Court Legal Services Committee, Allahabad.

The petitioner may file rejoinder affidavit within two weeks thereafter.

List/put up as a fresh case before the appropriate Bench **on 6.7.2022.**

Order Date :- 25.5.2022

sfa/

Court No. - 3

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Petitioner :- Mohammad Nayeem Khan

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Aqeel Ahmad

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Order on Time Extension Application No. 5 of 2022.

The applicant/petitioner in paragraph nos. 2,3,4 and 5 of the affidavit accompanying the time extension application has stated as under:-

"2. That, at the outset, it is most respectfully submitted that this Hon'ble Court vide order dated 25.5.2022 was pleased to direct the respondent no. 2 to file the counter affidavit and deposit Rs. 1,000/ before the High Court Legal Services Committee, Allahabad.

3. That the respondent no.2 paid cash amount of Rs. 1,000/ to the deponent at about 11.00 A.M. on 8.6.2022. Thereafter the deponent took steps for getting the necessary Demand Draft prepared from State Bank of India, PBB Branch, Allahabad in favour of 'High Court Legal Services Committee, Allahabad' as per direction of this Hon'ble Court. The requisite DD could be received by the deponent only in the evening at about 5.00 PM.

4. That next day i.e. on 9.6.2022, when the deponent went to the concerned Section of High Court office to deposit the DD, the section did not accept it saying that there is delay.

5. That the deponent tenders his unqualified apology for the delay in deposit of the cost. The delay is wholly unintentional and bonafide. The Hon'ble Court may be pleased to extend the time for deposit of the Demand Draft in the interest of justice, for which the deponent shall remain ever obliged."

In view of the averments made by the learned counsel for the applicant, the time for deposit of cost is extended for two weeks from today.

The aforesaid time extension application is, accordingly, **disposed of.**

Order Date :- 1.9.2022

sfa/

Court No. - 3

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Petitioner :- Mohammad Nayeem Khan

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Aqeel Ahmad

Counsel for Respondent :- Udit Chandra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Praveen Kumar Giri, J.

1. The present matter has been appearing in the Warning List under the heading "Oldest Pending Cases in this High Court for Priority Hearing".
2. None appears on behalf of the petitioner(s) even in the revised call.
3. Sri Nitesh Patel, learned counsel holding brief of Mr. Udit Chandra, learned counsel for respondent Nos.3 & 4 and learned Standing Counsel for the State-respondent are present.
4. Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.
5. The writ petition is disposed of.
6. In the event, the petitioner(s) is/are of the view that the cause of action still survives, liberty is granted to the petitioner(s) to file an application for recall/variation/modification of this order in accordance with law.

Order Date :- 5.8.2025

DKS

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)